

PLUGANDPLAY

Cummins

Anchor Corporate Membership
Agreement
Supply Chain
Plug and Play Silicon Valley

Ecosystem Corporate Membership
Agreement
Mobility
Plug and Play Stuttgart

This Corporate Membership Agreement (“Agreement”) is made effective as of May 01, 2024 (“Effective Date”), by and between Cummins Inc., whose principal office is located at 500 Jackson St. Columbus IN 47201 (hereinafter “CLIENT”) and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 North Wolfe Road, Sunnyvale, CA, 94085, United States (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.” The Parties acknowledge that parts of the services performed by Plug and Play under this Agreement will be rendered by Plug & Play Germany GmbH.

1. The Scope of the Agreement

1.1. CLIENT is seeking a deeper engagement with Plug and Play to drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the Supply Chain space. To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Anchor Membership—Plug and Play Supply Chain Northwest Arkansas

1.2.1. The execution of the Agreement will grant CLIENT a status of “Anchor Member” of Supply Chain at Plug and Play Silicon Valley.

1.2.2. As an Anchor Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2 and Section 4.

1.3. Ecosystem Membership—Plug and Play Mobility Stuttgart

1.3.1. The execution of the Agreement will grant CLIENT a status of “Ecosystem Member” of Mobility at Plug and Play Stuttgart.

1.3.2. As an Ecosystem Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 3 and Section 4.

2. Anchor Benefits—Plug and Play Supply Chain Northwest Arkansas

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the "Program"). As an Anchor Member, CLIENT will receive the following:

2.1. Committee Member: CLIENT will occupy one (1) position on the Advisory Committee in the Supply Chain Program (a "Committee Member"). The "Advisory Committee" consists of the Committee Members from all Founding Anchor Members and Anchor Members of the Supply Chain Program that will guide the trajectory of the Program.

- 2.2. Program Focus: CLIENT, as a Committee Member, will have the opportunity to set the technology focus and application call for the Program.
- 2.3. Elite List: Plug and Play will complete the initial review and vetting of the applications to select a list of qualified startups to be considered for admittance into the upcoming Batch of the Program (the “Elite List”). Committee Members will receive the Elite List, and from the Elite List Committee Members will vote to select startups to be reviewed at Selection Day.
- 2.4. Selection Day: CLIENT, as a Committee Member, will review the startups selected to pitch at Selection Day and vote to select startups to admit to the Program along with other Committee Members (“Selection Day”).
- 2.5. Guaranteed Selection: CLIENT, as a Committee Member, may choose one (1) startup from Selection Day to admit into each batch of the Program.
- 2.6. Sourcing and Startup Introductions
 - 2.6.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to six per Segment. Dealflow Sessions are structured as follows:
 - a) CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during the Dealflow Session.
 - b) At the Dealflow Session, each of the selected startups will present to CLIENT, followed by open discussions between the selected startups and CLIENT.
 - c) If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.
- 2.7. Trend Reports: Plug and Play will prepare up to four reports per Segment for CLIENT each focused on a specific topic selected by CLIENT (each, a “Trend Report”). Plug and Play shall organize the Trend Report as follows:
 - 2.7.1. CLIENT will provide Plug and Play with notice six weeks prior to its desired Trend Report. CLIENT shall choose a topic for the Trend Report

and Plug and Play will host a briefing session related to the selected topic to determine the scope of the Trend Report.

2.7.2. Plug and Play will research the selected topic and prepare a presentation that may include, but not be limited to, a high-level summary, market statistics, areas of growth, and the likelihood of cooperation with startups within the topic.

2.8. Innovation Day: Up to once per Segment, Plug and Play will host an Innovation Day for CLIENT. “Innovation Day” is a half day event with startup pitches from startups selected by CLIENT. Plug and Play shall source and prepare a short list of up to 12 startups that will be eligible for Innovation Day. CLIENT will select the startups for Innovation Day based on the list prepared by Plug and Play or may propose additional startups to participate in Innovation Day. Plug and Play will be responsible for communication with and managing the list of startups and guests invited to the Innovation Day.

2.8.1. Plug and Play shall manage Innovation Day, and such management shall include but not be limited to, preparing the schedule, organizing startup pitches, demo booths, keynote speakers and panelists, providing audio-visual equipment, catering, and managing day-of logistics.

2.8.2. CLIENT shall provide a venue for the event at CLIENT’s headquarters or other venue mutually agreed upon by CLIENT and Plug and Play, and assist Plug and Play with compiling a guest list for Innovation Day.

2.8.3. CLIENT shall reimburse Plug and Play for any additional costs incurred during Innovation Day with CLIENT’s consent, that are not specified in this section. Plug and Play will issue an invoice for Innovation Day within 10 days after completion of Innovation Day. Payment is due no later than 90 days after receipt of the invoice from Plug and Play.

2.9. Open Innovation Services

Each Segment during the Term, Plug and Play will provide two workshops to CLIENT. These workshops are intended to enhance the value of other membership benefits.

2.9.1. Corporate Innovation Training Workshop: Plug and Play will execute a workshop on a topic mutually agreed to by the Parties, with relevant CLIENT stakeholders that will focus on open innovation, vision and mission statements and alignment on high-level capabilities for Innovation.

2.9.2. Use Case Definition: Plug and Play will execute a workshop and follow up meetings to fully define the scope prior to one Dealflow Session per Segment as selected by CLIENT. The workshop will focus on defining the

problem statement and use case for the Dealflow Session and involve relevant CLIENT stakeholders and leaders.

2.10. Events & Workshops

CLIENT's marketing and business development representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. Plug and Play will provide:

2.10.1. Community Events: During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Program, members of other programs, and startups. CLIENT may attend any community event during the Term.

2.10.2. Internal Events: Plug and Play will invite CLIENT to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may invite CLIENT to internal events relating to other industries in Plug and Play's sole discretion.

2.10.3. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person.

3. Ecosystem Benefits—Plug and Play Mobility Stuttgart

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Mobility industry (the "Stuttgart Program"). As an Ecosystem Member, CLIENT will receive the following:

3.1. Events and Workshops: During the Term, CLIENT will receive access to all of the events outlined in Section 2.10 except focused on the Stuttgart Program.

3.2. Private Dealflow Sessions: For only Segment 2 and Segment 3 of the Stuttgart Program, Plug and Play will facilitate an additional four Dealflow Sessions as part of the Ecosystem Membership in the Stuttgart Program. These Dealflow Sessions will be structured according to Section 2.6.1.

3.3. Trend Reports: For only Segment 2 and Segment 3 of the Stuttgart Program, Plug and Play will prepare up to four additional Trend Reports for CLIENT as part of

the Ecosystem Membership in the Stuttgart Program. The Trend Reports will be structured according to Section 2.7.

4. Global Benefits

Plug and Play will provide CLIENT, as an Anchor Member of Supply Chain at Plug and Play Silicon Valley and an Ecosystem Member of Mobility at Plug and Play Stuttgart, with the following benefits during the Term:

- 4.1.** EXPOs: "EXPO" takes place at the conclusion of each Batch of both the Program and the Stuttgart Program, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities.
 - 4.1.1.** CLIENT may send representatives to attend the Program EXPO and will receive distinction as a VIP judge and one three to five-minute speaking slot. Plug and Play may grant longer speaking engagements depending on topic and speaker.
 - 4.1.2.** During Segment 1, CLIENT may send representatives to attend the Stuttgart Program EXPO. During only Segment 2 and Segment 3 of the Stuttgart Program, CLIENT may send representatives to attend the Stuttgart Program EXPO and will receive distinction as a VIP judge and one three to five-minute speaking slot. Plug and Play may grant longer speaking engagements depending on topic and speaker.
- 4.2.** Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).
- 4.3.** Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform.
- 4.4.** Community, Branding, and Marketing
 - 4.4.1.** Public Relations: CLIENT and Plug and Play will work together to submit a press release announcing the collaboration. Additionally, this collaboration will be promoted at Plug and Play's events and in event materials, including, but not limited to, event room screens, event programs, and pop-up banners.

4.4.2. Branding in Silicon Valley: A CLIENT placard will be positioned on Plug and Play's strategic member wall at its Silicon Valley headquarters. Plug and Play will also note CLIENT as a member on its website.

5. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

5.1. As a condition of this Agreement, CLIENT hereby authorizes Plug and Play the limited, non-exclusive, non-transferable right to use CLIENT's logo and trademarks ("Marks") in the following manner:

- A sign on the strategic member wall at Plug and Play's facility.
- A sign on the Supply Chain wall at Plug and Play.
- A sign on the Mobility wall at Plug and Play beginning in Segment 2.
- Event materials including, but not limited to, event room screens, event programs, and pop-up banners.
- Inclusion of CLIENT's name and logo on Plug and Play's website (www.plugandplaytechcenter.com).

5.2. In any other instance, Plug and Play will ask for written permission from CLIENT to use the Marks. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play.

5.3. CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

5.4. Plug and Play will ensure that all use by Plug and Play of the Marks comply with CLIENT's guidelines concerning the form and manner of presentation of the Marks, including CLIENT's instructions which it may provide from time to time, and Plug and Play shall at all times use the Marks in a manner consistent with CLIENT's standards, quality, style, and image.

5.5. CLIENT EXPRESSLY DISCLAIMS ALL REPRESENTATIONS AND WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, IN CONNECTION WITH THE MARKS.

5.6. Upon the termination of this Agreement, all rights granted under this Agreement with respect to the Marks shall automatically and immediately terminate, and Plug and Play shall immediately cease all use of the Marks.

6. Intellectual Property

- 6.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT and a technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 6.2.** If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

7. Confidentiality

- 7.1.** Prior to and during the Term, the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the "Confidential Information"). This Confidential Information includes, but is not limited to, trade secrets, processes, reports, studies, statistics, writings, documents, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and client lists, business contact lists, intellectual property, and any and all information related to each Party's respective business. For the avoidance of doubt, Confidential Information also includes the terms of this and any other agreement Client has with Plug and Play. The Parties understand that each has invested substantial effort into developing this Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any Confidential Information confidential and only use Confidential Information in furtherance of this Agreement. Parties agree that they shall not disclose (except to employees or representatives of a Party who have a need to know such information), market, develop, or cause to be marketed the other Party's Confidential Information without prior written consent. Business decisions and discussions regarding the internal business matters of Plug and Play are confidential and not public information. This confidentiality provision shall survive the expiration or earlier termination of this Agreement and shall continue for a period of three (3) years thereafter, except that confidentiality obligations as they relate to any trade secret(s) shall continue for so long as such information constitutes a trade secret under applicable law.
- 7.2.** The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:

- 7.2.1. was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party;
 - 7.2.2. was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party;
 - 7.2.3. was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement or other obligation of confidentiality regarding the information; or
 - 7.2.4. was developed by the receiving Party without use of or reference to and independently from the disclosing Party's Confidential Information.
- 7.3. All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during all and any oral communication, shall be and remain property of the disclosing Party.

8. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the "Indemnified Parties"), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys' fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as "Claims") which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any breach by such indemnifying Party under this Agreement.

Plug and Play shall defend, indemnify and hold harmless CLIENT and CLIENT's Indemnified Parties from and against any and all Claims which may be incurred by, asserted against, or recoverable from CLIENT and any Indemnified Party arising out of or relating to any of the Services performed by Plug and Play or accepted by CLIENT under this Agreement.

9. Limitation of Liability

Except for the indemnification obligations above, the liability for either Party under this Agreement shall be limited to the total amount of fees paid by Client to Plug and Play and in no event shall either Party be liable to the other Party for any special, incidental, punitive, or consequential damages. Notwithstanding the foregoing, in the event of a breach of

Section 7 (Confidentiality), consequential damages may be permitted in order to provide adequate recourse to the non-breaching Party.

10. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

11. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any obligation or liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

12. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC
Attention: Josh Saffran
Address: 440 North Wolfe Road,
Sunnyvale, CA, 94085, United States
Email: j.saffran@pnptc.com

Cummins Inc.
Attention: Law Department
Address: 500 Jackson St., Columbus, IN, 47201,
United States
Email: candace.moss@cummins.com

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of New York without application of its conflict of law or choice of law rules.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party.

16. Representations and Warranties

The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

17. Other

Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC

Cummins Inc.

Represented by:

DocuSigned by:

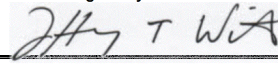
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Name: Josh Saffran

Title: Director, Arkansas and Georgia

Date: 4/29/2024

Represented by:

DocuSigned by:

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Name: Jeffrey Wiltout

Title: Vice President - Corporate Strategy

Date: 4/30/2024

Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Anchor Membership (Supply Chain Northwest Arkansas) - Segment 1	\$350,000.00	Start Date: May 01, 2024 End Date: April 30, 2025
Anchor Membership (Supply Chain Northwest Arkansas) - Segment 2	\$350,000.00	Start Date: May 01, 2025 End Date: April 30, 2026
Anchor Membership (Supply Chain Northwest Arkansas) - Segment 3	\$350,000.00	Start Date: May 01, 2026 End Date: April 30, 2027

Description of Work	Segment Amount	Segment Term
Ecosystem Membership (Mobility Stuttgart) - Segment 2	\$150,000.00	Start Date: May 01, 2025 End Date: April 30, 2026
Ecosystem Membership (Mobility Stuttgart) - Segment 3	\$150,000.00	Start Date: May 01, 2026 End Date: April 30, 2027

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until April 30, 2027 (the “Term”). Each 12-month period of the Term commencing on May 01 is a “Segment.”

CLIENT may terminate its participation in the Stuttgart Program prior to the end of Segment 1 by providing Plug and Play with 30 days written notice of its intent to terminate the Ecosystem Membership in the Stuttgart Program prior to the beginning of Segment 2. If CLIENT provides Plug and Play written notice of its decision 30 days prior to the beginning of Segment 2, CLIENT will not be invoiced for the Ecosystem Membership in the Stuttgart Program. CLIENT may terminate its participation in the Anchor Membership prior to the end of Segment 1 or Segment 2 to be effective at the end of the then-current Segment and/or the Ecosystem Membership of the Stuttgart Program prior to the end of Segment 2 to be effective at the end of Segment 2 by providing Plug and Play with 120 days written notice of its intent to terminate the Anchor Membership or the Ecosystem Membership in the Stuttgart Program prior to the end of the then-current Segment. If CLIENT provides Plug and Play timely written notice of its decision to terminate prior to the end of the then-current Segment, CLIENT will not be invoiced for the Anchor Membership and/or Ecosystem Membership, as applicable. Early termination of this Agreement by CLIENT for convenience under this paragraph shall not entitle CLIENT to any refund of fees previously paid nor shall it release CLIENT from the obligation to pay fees that were previously invoiced pursuant to the Fee Schedule above but remain unpaid as of the effective date of CLIENT’s early termination.

Either Party may terminate this Agreement in its entirety (the “Non-Breaching Party”) for the other Party’s material breach (the “Breaching Party”) of this Agreement by providing the Breaching Party written notice of the material breach. The Breaching Party shall have 90 days to cure such material breach, and if the Breaching Party fails to cure such material breach during the notice period, the Non-Breaching Party may terminate this Agreement. As used in this paragraph, “material breach” means (i) CLIENT’s failure to pay invoices when due, (ii) the insolvency or bankruptcy of either Party including becoming the subject matter of any proceeding relating to its bankruptcy, insolvency, receivership, liquidation, dissolution, winding up or entering into a plan of arrangement or similar agreement with its creditors, or (iii) failure by Plug and Play to continue either the Program or the Stuttgart Program,. In the event of termination by CLIENT under this paragraph due to Plug and Play’s breach or a termination by either Party under Section 13 (Force Majeure), CLIENT shall receive a pro rata refund of fees previously paid for the then-current Segment.

Plug and Play will invoice CLIENT on the first date of each Segment listed above, in the aggregate amount designated for that Segment. Payments made under this Agreement are made in United State Dollars, in advance, and are not refundable. CLIENT shall pay Plug and Play no later than 90 days after receipt of an invoice from Plug and Play. Failure of CLIENT to pay any amount when due may result in a late penalty commencing on the due date of such payment until the date paid at a rate of 1.5% per month (18% per annum), or the maximum amount allowed by law, whichever is less.

The Parties acknowledge that parts of the services performed by Plug and Play under this Agreement will be rendered by Plug & Play Germany GmbH. In order to comply with statutory law, and in particular tax regimes, Plug and Play may, in its sole discretion, allocate the fees under this Agreement between itself and Plug & Play Germany GmbH for its provision of services.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all (a) sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play) and (b) regulatory fees or surcharges of all governmental authorities, applicable to the services provided to CLIENT under this Agreement.